

Court No. - 35

Case :- WRIT - C No. - 7320 of 2010

Petitioner :- Bhim Singh

Respondent :- U.P. Power Corporation Ltd. & Ors.

Petitioner Counsel :- Raj Kumar Dhama

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Vineet Saran,J.

Hon'ble Ran Vijai Singh,J.

Heard learned counsel for the petitioner as well as Sri Pankaj Kumar Shukla, learned counsel for the respondents and have perused the record.

The grievance of the petitioner is that he was being charged electricity dues as per LMV 1(a) but now the Corporation has changed the tariff to that of LMV 1(c). With regard to such grievance the petitioner has already filed representation before the Superintending Engineer, a copy of which has been filed as Annexure-3 to this writ petition.

Sri Shukla, learned counsel for the respondent-Corporation, however, states that as per the provisions of Clause 6.5 of the U.P.Electricity Supply Code, 2005 such a dispute can be decided by the Executive Engineer, respondent no.3.

In view of the aforesaid statement of Sri Shukla and also considering the facts and circumstances of this case, this writ petition is finally disposed of with a direction that in case if, with regard to his grievances made in this writ petition, the petitioner files a fresh comprehensive representation before the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., Power Supply Division, Baghpat, respondent no.3, along with a certified copy of this order, the same shall be considered and decided by the said respondent no.3, in accordance with law, expeditiously, preferably within a period of three weeks from the date of filing of the same.

With the aforesaid observation/direction, this writ petition is disposed of. No order as to cost.

Order Date :- 22.2.2010

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